STC – Atrium Skylight-Mid Value Domestic On-site Works

Bidder Name	:	[*insert name of the bidder*]
Offer Reference Number and Date	:	[*insert details of the offer*]
Offer validity	:	[Sixty (60)] days from the date of submission of the final offer.

Note to bidder:

(1) The terms and conditions specified herein, including any negotiated positions, shall be incorporated in the Service Order that will be issued to the successful bidder. For the purpose of this enquiry, all references to 'Service Order' herein shall be read as references to this 'STC'.

(2) The terms and conditions applicable to the SO Documents, other than the commercial terms and conditions set out herein (including any negotiated positions) or any schedules that may be attached, shall be as per the GTC.

(3) Please note that it is mandatory for the bidder to insert the applicable response (from options (a) or (b) below) in the 'Bidder Response' column for each line item in the table below:

(a) Agreed; or

(b) Not agreed (in such case, bidder to provide relevant deviation).

Sr. No.	Particulars	Employer's Terms and Conditions	Bidder Response
1.	**Scope of Work**	Construction of Compound Wall & Security Cabin at Community Hall, Motera, Ahmedabad.	[*Bidder to insert response as per Note (3) above*]
2.	**Effective Date**	The Effective Date shall mean the date of issuance of the Service Order/letter of award by the Employer to the Contractor	[*Bidder to insert response as per Note (3) above*]
3.	**Site**	The Contractor shall perform the Works at Retail Centre, Shantigram.	[*Bidder to insert response as per Note (3) above*]
4.	**Completion Schedule**	The Contractor shall perform the Works and achieve Completion within 3 months from the Effective Date or the date notified by the Employer as the commencement date.	[*Bidder to insert response as per Note (3) above*]
5.	**Basic Price**	5.1 The Basic Price shall be as specified in the Price Schedule set out in 'Annexure I: Price Schedule' and shall be payable on a BOQ basis. The Basic Price shall be inclusive of applicable Taxes (except GST), labour and other statutory charges, gratuity amounts, cost of materials, consumables, tools and tackles, insurance charges, margin, overheads, charges for Bank Guarantees and other costs associated with the performance of the Scope of Work.	[*Bidder to insert the Basic Price in the Price Schedule*]
	SO Price	5.2 The SO Price shall be as specified in the Price Schedule set out in 'Annexure I: Price Schedule', which shall be inclusive of GST.	[*Bidder to insert the Total Price payable in the Price Schedule*]
6.	**Taxes**	GST shall be paid at actuals, as per the rates specified in the Price Schedule set out in 'Annexure I: Price Schedule'. BOCW Cess, if applicable, shall be directly paid by the Employer.	[*Bidder to insert the applicable GST rates in the Price Schedule*]
7.	**Payment Terms**	7.1 100 % of the Basic Price (along with applicable GST payable on the remaining portion of the Basic Price after payment of any advance) shall be paid on a pro rata basis within 30 days after upon	[*Bidder to insert response as per Note (3) above*]

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		submission of the Running Account Bill (in a manner and form as specified herein) and the following documents: (a) tax invoice, including details such as item number, Contractor's GST identification number and permanent account number: one (1) set of original and two (2) sets of copies. (b) inspection release note and/or measurement sheets duly certified by the Employer's representative. (c) reconciliation statement of Free Issue Materials (if applicable); (d) copy of insurance policies to be procured by the Contractor; and (e) copy of statutory registrations as required for performance of the Works under the SO Documents. 7.2 Payment Schedule 75 % of assessed value of work within 15 days from the date of submission of Running Account Bill by the Contractor, in an acceptable condition. Balance amount within 30 days from the date of submission of Running Account Bill.	
8.	**8.1 Delay Liquidated Damages**	0.5% of the SO Price (along with applicable GST), for each completed week of delay or part thereof, subject to a maximum of 5% of the SO Price.	[*Bidder to insert response as per Note (3) above*]
	8.2 Shortfall Liquidated Damages	Nil	[*Bidder to insert response as per Note (3) above*]
	8.3 Overall cap for liquidated damages	Nil	[*Bidder to insert response as per Note (3) above*]
	8.4 Other liquidated damages	Nil	[*Bidder to insert response as per Note (3) above*]
9.	**9.1 Advance Payment Bank Guarantee**	Nil	[*Bidder to insert response as per Note (3) above*]
	9.2 Contract Performance Bank Guarantee	Nil	[*Bidder to insert response as per Note (3) above*]
	9.3 Performance Bank Guarantee	Nil	[*Bidder to insert response as per Note (3) above*]
	9.4 Contract Performance cum Performance	Nil	[*Bidder to insert response as per Note (3) above*]

Sr. No.	Particulars	Employer's Terms and Conditions	Bidder Response
	Bank Guarantee		
10.	**Defect Liability Period**	The Defect Liability Period shall be for a period of 12 months from the date of Completion as per the Completion Schedule.	[*Bidder to insert response as per Note (3) above*]
11.	**MSME Status**	The Contractor is registered as a [micro/small/medium] enterprise under the Micro, Small and Medium Enterprises Development Act, 2006 and the rules and regulations made thereunder. The Contractor shall furnish documentary evidence with respect to its status as a [micro/small/medium] enterprise. [*Retain as may be applicable*] [*Note: If the Contractor is not a micro, small or medium enterprise, mention 'Not Applicable'.*]	[*Bidder to specify if it is registered as an MSME and if yes, Bidder to furnish the MSME certificate.*]
12.	**Specific Agreed Terms**	**12.1 Utilities and Facilities:** For Labour Camp: Source of Water (free of cost) and source of electricity (on chargeable) shall be provided by the Employer at single point near the labour camp at designated place approved by the PM. For Works: Source of Water (free of cost) and Source of Electricity (chargeable basis) shall be provided by the Employer at single point near the Site. Employer does not guarantee uninterrupted supply of power and no extension of time, or any other claim shall be entertained in the case of breakdown or disruption to the power supply. The Contractor is free to install a diesel generator, with acoustic enclosure, to cover such exigencies. Contractor shall arrange for the pumping, storage, and transportation of water for use as per requirements of construction and the requirements of water for drinking and sanitation for the Contractor's labour camps. The Employer does not guarantee uninterrupted supply and portability of water and no extension of time, or any other claim shall be entertained in the case of breakdown or disruption to the water supply. Upon completion of the Works, the Contractor shall handover the source of water to the Employer in the same condition as it was provided to him, save normal wear and tear. The running maintenance as well as replacement of worn out / damaged parts of any equipment used for the pumping, storage and transportation of water is the responsibility of Contractor. Only space for labour camp shall be provided by Employer free of cost. Within Shantigram at designated location decided by Employer. Employer may provide labour camp on rental bass. Material Storage space shall be provided by Employer free of cost. Contractor has to build storage at their own cost.	[*Bidder to insert response as per Note (3) above*]

Details of Bidder's Authorised Signatory

Signature : _____

Name : _____

Designation : _____

Stamp :